

25AVCV00713 25AVCV00713

County: los-angeles

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

TALIA COLIN,

Plaintiff,

v.

GENERAL MOTORS, LLC,

Defendant.

Case Number 25AVCV00713

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 28, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action arising from Plaintiff Talia Colin's (Plaintiff) purchase of a new vehicle from Defendant General Motors, LLC (Defendant) and Defendant's alleged violation of its statutory obligations under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Plaintiff moves the Court for an order of attorney's fees, costs, and expenses pursuant to the parties' settlement agreement.

On June 5, 2025, Plaintiff filed a complaint against Defendant, asserting three causes of action for (1) breach of warranty obligation to provide restitution or replacement, (2) breach of warranty obligation to commence or complete repairs within 30 days, and (3) breach of implied warranty of merchantability.

Specifically, Plaintiff alleges that on April 1, 2022, Plaintiff purchased a 2022 Chevrolet Traverse (Vehicle) from an authorized retailer which was manufactured and distributed by Defendant. (Compl., ¶ 4.) Plaintiff claims that during the warranty period, the Vehicle contained or developed defects and nonconformities to warranty which impaired the use, value, or safety of the Vehicle. (Compl., ¶ 15.) Plaintiff presented the Vehicle to Defendant, who failed to repair the Vehicle or offer restitution or replacement of the Vehicle. (Compl., ¶¶ 16-17.)

On July 29, 2025, Defendant filed its answer.

On January 30, 2026, Plaintiff filed a notice of settlement of the entire case, and the Court set an OSC re dismissal (settlement) for hearing on April 2, 2026.

On March 30, 2026, Plaintiff filed the present motion for attorney's fees.

On April 1, 2026, on its own motion, the Court continued the OSC re dismissal to July 28, 2026.

On July 15, 2026, Defendant filed its opposition.

On July 22, 2026, Plaintiff filed her reply.

II. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: "If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys' fees that are reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-19.) "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case." (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues,

the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448 (citations omitted).) “The basis for the trial court’s calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time.” (Horsford v. Board of Trustees Of California State University (2005) 132 Cal.App.4th 359, 395.) “The law is clear, however, that an award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664; see also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [“[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs’ attorney, are satisfactory evidence of the prevailing market rate.”].)

III. Discussion

Application – Plaintiff requests an order for attorney’s fees, costs, and expenses amounting to \$27,575.66 pursuant to a signed settlement agreement (Settlement), the Song-Beverly Consumer Warranty Act, California Civil Code section 1794, subdivision (d), and calculated using the lodestar formula. (Notice of Motion, p. 1:7-8, 18.) This total is comprised of (1) \$19,250 for attorney’s fees, (2) \$1,925 for an enhancement of attorney’s fees by a multiplier of 1.1, (3) \$4,400.66 for costs and expenses, and (4) \$2,000 in anticipated fees for filing a reply and attending the hearing. (Notice of Motion, p. 1:18-22.)

a. Entitlement to Attorney’s Fees, Costs, and Expenses

Here, there is no dispute that Plaintiff is the prevailing party to this litigation, nor that they were entitled to recover reasonable attorney’s fees, costs, and expenses incurred in litigation. The settlement offer establishes that Plaintiff accepted the offer, which states, in relevant part, “GM LLC shall pay to Plaintiff Counsel... (ii) Reasonable attorneys’ fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion. Defendant agrees Plaintiff is the prevailing party for purposes of said fee motion.” (Chae Decl., Ex. 1, p. 1.)

In any event, it is undisputed that this settlement offer was accepted by Plaintiff, and it is undisputed that Plaintiff elected for her attorney’s fees, costs, and expenses to be determined by the Court on noticed motion pursuant to Section 1794, subdivision (d). (Opp., p. 3:5-6.) Where an accepted settlement offer designates the Plaintiff as the prevailing party and specifically delegated determination of fees to the Court, it thereby entitles the Plaintiff to bring the subject motion. (Engle v. Copenbarger & Copenbarger, LLP (2007) 157 Cal.App.4th 165, 168-69.)

b. Reasonableness of Attorney’s Fees Amount

As discussed, the standard method for calculating reasonable attorney’s fees is the lodestar method, which determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys’ Hourly Rates

The Declaration of Larry Chae, Plaintiff’s counsel, sets forth his autobiography and hourly rate. Chae has been a member of the California Bar since February of 2010 and serves as the principal and founding attorney of Veracis Law Corporation,

which has specialized in representing consumers on a contingency basis in Song-Beverly actions since 2017. (Chae Decl., ¶¶ 13-16.) Chae charges \$500/hour and is the sole practicing attorney of Veracis Law Corporation. (Chae Decl., ¶¶ 17-18.)

Defendant does not argue that any of these rates are unreasonable or should be reduced. As the issue of rate reasonableness is uncontested, the Court accepts Chae's rate for the purposes of this motion. This ruling should not be construed by any other court that this Court has found, after a disputed adjudication, that Plaintiff's counsel's rates are reasonable.

Accordingly, the rate requested for Chae is accepted as requested.

ii. Reasonableness of Hours Billed

Chae contends that he reasonably spent 38.5 hours in prosecuting this action in the nine months from retention through settlement, including the actually-incurred fees in bringing the present fee motion and has provided detailed billing records reflecting the work. (Motion, p. 5:12-14; Chae Decl., ¶ 22, Ex. 6.) Chae also declares that to the extent that any documents were drafted based off pre-existing templates, the time spent preparing such documents reflects only the time actually taken to modify the template to fit the particular facts of Plaintiff's Case. (Chae Decl., ¶ 21.)

In opposition, Defendant argues that Plaintiff's request should be denied or significantly reduced by 23.9 hours, totaling \$11,950 for billed work not actually, reasonably, or necessarily incurred. (Opp., p. 7:1-2.)

Defendant specifically objects to the following charges, all billed by Chae at \$500/hr., and requests the specified reduction:

1. Pre-litigation tasks – 9.0 hours (\$4,500) billed from March 10, 2025 through June 4, 2025 – reduce by 8.5 hours (\$4,250) (Opp., p. 4:8-15);
2. Templated complaint package – 2.1 hours (\$1,050) billed on June 5, 2025 – reduce by 1.6 hours (\$800) (Opp., p. 4:17-24);
3. Time reviewing Defendant's document production – 2.4 hours (\$1,200) billed on October 7, 2025 – reduce by 1.4 hours (\$700) (Opp., p. 4:25-5:7);
4. Time spent on tasks related to Defendant's PMK deposition – 4.0 hours (\$2,000) billed on November 3-4, 2025 – reduce by 2.0 hours (\$1,000) (Opp., p. 5:8-17);
5. Templated mediation brief – 5.5 hours billed on November 27 and December 2, 2025 (\$2,750) – reduce by 5.0 hours (\$2,500) (Opp., p. 5:18-23);
6. Administrative and clerical time – 1.4 hours (\$700) billed throughout the case – strike entirely (Opp., p. 5:24-6:2);
7. Vehicle surrender – 0.9 hours (\$450) billed on January 21, 22, 28, February 19, 28, and March 1, 2026 – strike entirely (Opp., p. 6:3-11);
8. Fee motion – 6.1 hours (\$3,050) billed on March 28-29, 2026 and for anticipated fees – reduce by 3.1 hours (\$1,550) (Opp., p. 6:20-27).

On reply, Plaintiff argues that Defendant's opposition provides no competent, admissible evidence in support of its challenges as required under *Premier Med. Management Systems, Inc. v. Cal. Ins. Guarantee Assn.*, 163 Cal. App. 4th 550, 564 (2008), that Chae's use of templates does not warrant a reduction in fees awarded, that flat fee billing for pre-litigation work is recoverable as reasonably incurred by Plaintiff in connection with the commencement of this action, and that block billed time is not unrecoverable, as there is no need for the Court to separate compensable from non-compensable hours as all claims arose under the Song-Beverly Act and Plaintiff is entitled to all fees. (Reply, p. 3:3-9, 3:21-23; 4:1-3, 11-14, 15-17.)

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, *supra*, 144 Cal.App.4th at 817.) The party seeking attorney fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]." (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The detailed billing records Plaintiff has submitted to validate the billed hours for which Plaintiff requests reimbursement "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, *supra*, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id at 396-97.)

Here, the Court finds much of Plaintiff's counsel's billing reasonable. From June 10, 2025 through March 29, 2026, Chae billed for work that appears reasonably necessary for the prosecution of Plaintiff's case, including case review with Plaintiff, drafting the pleadings, correspondence with his client and opposing counsel, analyzing repair orders, review of Defendant's disclosures and discovery responses, reviewing Defendant's settlement offer, correspondence with the case mediator, and drafting the present motion. (Chae Decl., Ex. 6.)

While reliance on templated drafts is common and can significantly reduce an attorney's work, counsel is still expected to review these templates and modify them accordingly, considering the specific legal issues raised, the facts of the case, and conducting further research where necessary. The same is true for review of discovery production. For example, Defendant objects to 2.4 hours spent reviewing Defendant's production of over 7,000 pages of documents. However, even if, as Defendant argues, these documents produced are the same standard manuals and warranty agreements Defendant generally provides, it is incumbent upon Plaintiff's counsel to act with due diligence to ensure that is the case, to ensure the documents produced satisfy the discovery request to which they are responsive, and to analyze any case-specific production. The Court cannot say that the time billed here is excessive.

However, having reviewed the conformed complaint, the Court agrees with Defendant that the fees billed for drafting the complaint should be reduced by 1.1 hours, to 1 hour. The Court does not find it appropriate to reduce or strike billing entries for client communication, particularly so here given the high value of the vehicle. Attorneys have a legal and ethical obligation to promptly provide their clients with updates and advise them on the progress of their case, and the Court finds entries related to client communication reasonable, necessary, and appropriate.

The Court notes that the fees billed for Chae's hours spent in the commencement of this action, including pre-litigation work done on the case, are recoverable, including consulting Plaintiff, reviewing the facts of the case, consultations with expert witnesses concerning the Vehicle's prior repair history, and drafting communications to Defendant. However, the Court finds 9.0 hours for such work excessive without specific allocations of time to the work performed. Accordingly, the Court strikes 4.0 hours (\$2,000) from this entry.

The time billed for vehicle surrender was not necessarily or reasonably incurred in the commencement or maintenance of litigation, and while necessary to adhere to the settlement agreement, is not substantive legal work. Accordingly, the Court strikes 0.9 hours (\$450) billed for the surrender of Plaintiff's vehicle.

The Court agrees that 5.5 hours billed for the drafting of a mediation brief is excessive, and the Court strikes 2.0 hours (\$1,000) from this entry.

The Court also agrees that 6.6 hours for the preparation of the present fee motion is excessive in light of the relative simplicity of the motion and the standard applicable law which applies. Accordingly, the Court strikes 1.6 hours from this entry.

The Court also agrees in part with Defendant's characterization of some of these charges as secretarial or clerical in nature, and notes that some of these entries do not constitute substantive legal work. While calendaring dates, properly recording and saving client files and Court documents, and coordinating appearances by counsel are important and necessary tasks in litigation, these tasks are secretarial in nature and do not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in *Johnson v. Georgia Highway Express, Inc.*, 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on this task to be reasonable absent evidence to the contrary, billing these tasks as attorney or paralegal fees is unwarranted.

Therefore, the Court strikes or reduces the following billing entry for being secretarial by nature: December 3, 2025 – 0.1 stricken (\$50), billed for "Email to mediator requesting early preliminary call (in light of trial engagement)."

Chae declares he spent 2.8 hours reviewing Defendant's opposition and preparing the reply brief, and accordingly, agrees to a reduction of anticipated time, including opposition review, drafting the reply, and appearing at the hearing, to 3.0 hours. (Reply, p. 6:9-13.) The Court finds this reasonable and strikes 1.0 hour (\$500) from the anticipated time requested in connection with this motion.

Accordingly, aside from the entries specifically identified above as being reduced or stricken entirely, the Court finds these billing entries reasonable and necessarily incurred in litigation absent evidence from Defendant to the contrary.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney's fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys.

From Plaintiff's \$19,250 attorney's fee request for 38.5 hours, the Court strikes \$4,850 for 9.7 hours stricken. From Plaintiff's request for \$2,000 for 4.0 hours of anticipated time to be spent reviewing Defendant's opposition, preparing a reply, and attending the hearing, the Court strikes 1.0 hour, for \$500.

Accordingly, Plaintiff is entitled to recover \$15,900 in reasonably incurred attorney's fees.

c. Fee Multiplier

Plaintiff requests a fee multiplier of 0.1 to the lodestar amount given the result obtained, the delay in payment, and the risk associated with contingency-based representation. (Motion, p. 1:19, 7:24-25, 16-18.)

Once the Court has determined an appropriate lodestar figure, the court may then determine whether that figure should be adjusted with a positive or negative multiplier. (*Graham v. DaimlerChrysler Corp.* (2005) 34 Cal.4th 553, 582.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; (4) the skill exhibited by counsel; (5) the extent to which the nature of the litigation precluded other employment by the attorneys; and (6) the contingent nature of the fee award based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (*Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556; *Robertson*, supra, 144 Cal.App.4th at 819.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (*Graham* supra, 34 Cal.4th at 582.)

In opposition, Defendant argues that this case does not warrant a fee multiplier because there was nothing novel, difficult, or unique about the present case or its outcome, as it is a standard Song-Beverly action in which the issues presented are virtually identical case to case, the case spanned only six months and presented no unusual or complex issues, Chae's work was limited to standard and generic filings and discovery as required by AB 1755, and there was no unique skill required to obtain Plaintiff's outcome. (Opp., p. 7:21-22, 24-28.)

The Court finds that a multiplier is not warranted in this case. While Plaintiff received an excellent result in settlement, and while Plaintiff's counsel took this case on contingency, this is a standard Song-Beverly action. While the Court acknowledges that there is inherent risk in taking a case on contingency, the Court finds the risk in this action to be minimal considering a prevailing buyer in a Song-Beverly action is legally entitled to recovery of all reasonable and necessary attorney's fees, costs, and expenses incurred pursuant to Code of Civil Procedure section 1794, subdivision (d). Based on the relatively sparse record, and the moving and opposition papers filed for the present motion, the Court does not find the novelty or difficulty of the legal and factual issues involved, nor the skill required of Plaintiff's counsel in this case, rising to the level of warranting a multiplier.

Accordingly, Plaintiff's request for a fee multiplier is DENIED.

d. Costs and Expenses

Plaintiff requests costs and expenses totaling \$4,400.66. (Chae Decl., Ex. 7.) The costs and expenses requested include filing and motion fees, jury fees, deposition costs, service of process costs, fees for electronic filing or service, mediation fees, and association of counsel for deposition defense.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ibid.*)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) "Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).)

In opposition to Plaintiff's request, Defendant requests that the Court reduce the costs in the amount of \$3,914.03 on the grounds that Plaintiff has provided no explanation or evidence for the costs requested to substantiate the request. (Opp., p. 9:8-10:3.)

To start, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 [“trial court erred in requiring additional proof from” the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 [“where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed”].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (Bender, supra, 217 Cal.App.4th at 989.)

Here, the burden is on Defendant to show that the costs included on Plaintiff’s Memorandums of Costs are unreasonable. Defendant has provided no evidence that any of these fees or costs are unreasonable. Further, while Defendant objects to certain fees, such as jury fees, on the grounds that they were not ultimately required, this is not a basis on which the Court will deny recovery. Indeed, posting of jury fees is a requirement for a party not to waive their right to a jury and oftentimes must be done by a certain date in compliance with court orders.

Defendant is incorrect that further supporting documentation is needed, and Defendant fails to point to a single entry which is neither allowable nor reasonably necessary. In reviewing Plaintiff’s Memorandum of Costs, none of the costs or expenses for which Plaintiff seeks reimbursement are facially improper.

In the absence of evidence or argument to the contrary, the Court finds that Plaintiff’s request of \$4,400.66 in costs is reasonable and recoverable.

Accordingly, Plaintiff’s request for attorney’s fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of \$20,300.66, consisting of \$15,900.00 in attorney’s fees and \$4,400.66 in costs.

IV. Conclusion

Plaintiff Talia Colin’s Motion for Attorney’s Fees is GRANTED in the amount of \$20,300.66.